

Court No. - 2

Case :- WRIT - C No. - 45364 of 2010

Petitioner :- M/S Stock Holding Corporation Of India Ltd.

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- R.S. Pandey, Rajshree Malviya

Respondent Counsel :- Anubhav Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Virendra Kumar Dixit, J.

Heard learned counsel for the petitioner and Sri Anubhav Shukla, learned counsel for the respondents.

By this writ petition, the petitioner has prayed for a writ of mandamus, directing the respondents no. 1, 2 and 3 to provide the electricity connection in premises No. 188A/255 C.L. Plaza Meerapur, Atarsuiya, Allahabad.

The petitioner's case in the writ petition is that an application was submitted by the petitioner for electricity connection. Learned Counsel for the petitioner submits that a fresh application for the aforesaid purpose has been given on 30/31.7.2010. Sri Anubhav Shukla, learned counsel appearing for the respondents submits that the petitioner's application is not being processed since he has not submitted the no objection certificate from the landlord. He further submits that according to Electricity Supply Code, 2005, without no objection certificate from the landlord of the premises, the application for electricity connection cannot be processed. Learned Counsel for the petitioner submits that the petitioner shall file appropriate no objection certificate from the landlord.

In view of the aforesaid, no useful purpose will be served in keeping the writ petition pending. We dispose of the writ petition with the direction that in case the petitioner submits the requisite no objection certificate from the landlord and complete all other formalities, his application for electricity connection shall be processed and appropriate action be taken expeditiously by the respondent no. 2 in accordance with law.

Order Date :- 4.8.2010

LA/-